

בִּשּׁוּל עֲכוּ"ם

Bishul Akum & the Kosher Cup

Coffee is cooked, and usually by a non-Jew — so why is nearly every posek lenient? The three classic rationales, plus gilui, bugs in the equipment, and what chalav akum does to your latte.

השאלות ON THE TABLE THE QUESTIONS

1 Does mixing instant coffee powder with hot water constitute bishul akum when the hot water is provided by a non-Jew? (Avnei Yashpeh YD 1:139:2)

The Avnei Yashpeh examines whether the combination of non-Jewish-made powder and hot water (whether provided by a Jew or non-Jew) raises bishul akum...

2 Is instant coffee powder made by non-Jews subject to bishul akum, and may a Jew prepare it for drinking? (Avnei Yashpeh YD 1:139:1)

The Avnei Yashpeh discusses at length and tends toward leniency, though with qualifications.

3 Is coffee, tea, or chocolate brewed by a non-Jew subject to bishul akum? (Pri Chadash — lenient)

Permitted. Coffee, tea, and chocolate brewed by a gentile are not subject to bishul akum.

4 Is coffee, tea, or chocolate brewed by a non-Jew subject to bishul akum? (stringent positions)

Prohibited. Those who disagree with the Pri Chadash hold that coffee, tea, and chocolate brewed by a gentile are subject to bishul akum.

5 Is coffee brewed by a non-Jew subject to bishul akum? (comprehensive survey)

Most halachic authorities permit coffee made by a non-Jew. Those who refrain do so as a personal stringency, not a halachic requirement.

6 May one use coffee as a regular pretext for socializing with non-Jews?

No. Even if the coffee itself is halachically permitted, one should not use kosher coffee as a frequent vehicle for socializing with non-Jews, as it...

7 Does bishul akum ostensibly apply to coffee, and what is the OU's analysis?

Coffee ostensibly meets both conditions for bishul akum: (1) the beans cannot be eaten raw, and (2) brewed coffee is served at elegant affairs (oleh...

8 Is coffee brewed by a non-Jew subject to the prohibition of bishul akum?

Most poskim rule that coffee is exempt from bishul akum and may be drunk even if brewed entirely by a non-Jew.

9 May one drink coffee from cups used in a non-Jewish coffee house?

Prohibited from the outset. The cups were certainly used with cholov akum (non-Jewish milk) on that very day.

10 Is a cup of coffee (including coffee with milk) subject to the prohibition of gilui (leaving liquids uncovered)?

Disputed. Lenient view (Chazon Ish): a cup of coffee is not subject to gilui even if it contains water and milk, because the taste has changed (נשתנה)...

11 A fly was boiled in the kumkum (kettle) used to heat water for coffee. Is the water forbidden? Is the kumkum treif?

The water is permitted. The fly is ט"ל לִפְגֵּם (imparts a repulsive taste) and therefore does not render the water or kumkum forbidden.

Chazon Ish - Archos Rabbeinu 5:129:5

Rabbi Yaakov Yisrael Kanievsky (Steipler Gaon), 1899–1985

A cup of coffee is not subject to the prohibition of gilui (leaving liquids uncovered), despite the fact that it contains water and milk — because its taste has changed.

שבכוס קפה אין גלוי למרות היות בו מים וחלב נשתנה טעמו

Kehilot Yaakov - Archos Rabbeinu 1:206:17 and 5:129:5

Rabbi Yaakov Yisrael Kanievsky (Steipler Gaon), 1899–1985

[The Steipler] was extremely careful about gilui, and even after coffee with milk was prepared in the normal way — as usual — if one forgot and left the room for a moment and it remained uncovered with no one in the room, he would not drink it again. And they were always careful that [drinks] should always be covered...

נוהר מאד בגילוי ואף לאחר שעשתה קפה עם חלב כרגיל אז תה אם שוכח ויוצא לרגע מהחדר ונשאר מגולה ואין בן אדם בחדר שוב אינו שותה. והקפידו תמיד שיהיו מכוסים ...

Dor HaMelaktim Issur veHeter 4 (Shtilerman) - Gilui ↗

Lenient [on coffee and gilui]: (1) Chazon Ish (Archos Rabbeinu vol.5 p.129 ot 5): "My master [the Chazon Ish] zt"l, as transmitted by his son R. Chaim Kanievsky shlit"a who heard it from the Chazon Ish zt"l: that a cup of coffee is not subject to the prohibition of gilui (leaving liquids uncovered), despite the fact that it contains water and milk — because its taste has changed [and it is therefore a new substance].

(א מיקל: 1) חזו"א (ארחות רבנו ח"ה עמ' קכ"ט אות ה') – "מו"ר (שליט"א) וצוק"ל בשם בנו הגר"ח ק שליט"א ששמע ממרן החזו"א וצוק"ל שבכוס קפה אין גלוי למרות היות בו מים וחלב נשתנה טעמו". (ב מחמיר: 1) קהלות יעקב (ארחות רבנו ח"ה עמ' ר"ו אות י"ז, ח"ה עמ' קכ"ט אות ה') – "נוהר מאד בגילוי ואף לאחר שעשתה קפה עם חלב כרגיל אז תה אם שוכח ויוצא לרגע מהחדר ונשאר מגולה ואין בן אדם בחדר שוב אינו שותה. והקפידו תמיד שיהיו מכוסים ..."

WORTH ARGUING ABOUT צריך עיון

- Three classic rationales exempt coffee from bishul akum: the bean is edible raw, the water is the ikar, and black coffee isn't oleh al shulchan melachim. Notice that each rationale draws the line in a different place.
- A leniency built for black coffee doesn't automatically survive milk, syrups, and steamed drinks — watch where each posek stops.
- Gilui (uncovered liquids) is a rare case of a Talmudic decree most poskim treat as lapsed — why does the Shulchan Aruch still record it?



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